

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201707050	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) NA, 04/__/2017 2:00 PM	Location of Incident: 104th Precinct stationhouse	18 Mo. SOL 10/1/2018	Precinct: 104
Date/Time CV Reported Mon, 08/28/2017 12:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/28/2017 12:25 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mihai Tudor	17725	947556	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mihai Tudor	Discourtesy: Police Office Mihai Tudor spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

This complaint was filed by § 87(2)(b) on August 28, 2017 with the CCRB by phone.

On an unknown date in April 2017, at approximately 2:00 p.m., § 87(2)(b) went to the 104th Precinct stationhouse in Queens. § 87(2)(b) went to the stationhouse to present evidence of various crimes which have been committed against her since 2008 and to file a police report. PO Mihai Tudor of the 104th Precinct allegedly told § 87(2)(b) to “get the fuck out of here” (**Allegation A**). No arrests or summonses resulted from this incident. There is no video that captures this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was deemed an unsuitable candidate for mediation.
- A notice of claim request was submitted to the NYC Office of the Comptroller and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) that fell within the Agency’s jurisdiction. § 87(2)(b)
- PO Tudor has been a member of the service for nine years and has no substantiated allegations. PO Tudor has five prior discourtesy allegations involving five cases. In four of these cases, PO Tudor is alleged to have used the word “fuck” toward civilians in various contexts. These prior allegations have been closed by the Board as complaint withdrawn, victim uncooperative, and unsubstantiated.

Potential Issues

- § 87(2)(b) did not know the particular date of this incident and was unable to provide any additional information § 87(2)(g). As a result, the investigation was unable to request NYPD records § 87(2)(g).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) learned PO Tudor’s name by looking at his name tag. She described PO Tudor as a white male, in his 50s, who stood 5’6” to 5’7” tall, had short grey hair, and blue eyes. According to the pedigree sheet filled out by PO Tudor prior to his interview, he is a § 87(2)(b) old white male, § 87(2)(b), has grey hair and blue eyes. § 87(2)(g)

Allegation A - Discourtesy: Police Office Mihai Tudor spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that she went to the 104th Precinct stationhouse to present evidence of various crimes committed against her since 2008 (BR03). § 87(2)(b)

At the stationhouse, § 87(2)(b) spoke with a female civilian staffer who she could not identify to try and file a police report. § 87(2)(b) was directed to speak to the desk officer. § 87(2)(b) asked to speak with Captain Wachter who had helped her on a previous occasion. § 87(2)(b) asked repeatedly to speak with Captain Wachter and for directions on how to file a police report. § 87(2)(b) was told Captain Wachter was not there and she never received a response in regards to how to file her report. § 87(2)(b) was frustrated and become upset because she has been trying to get help reporting these crimes for years and is always ignored. PO Tudor, who had been completely uninvolved in the interaction, came over to § 87(2)(b) and told her to “Get the fuck out of here.” § 87(2)(b) continued speaking with the desk officer, was ultimately told that she could not file her criminal report, and left.

PO Tudor testified that he had no recollection of the incident involved in this complaint (BR04). PO Tudor had no prior knowledge of § 87(2)(b) and did not recognize her after being presented a photograph of her. Various details of the incident, as recounted by § 87(2)(b) were described to PO Tudor. These details did not refresh any recollection of the incident or of § 87(2)(b). PO Tudor was provided the descriptions of the female civilian staffer and the desk officer § 87(2)(b) alleged she spoke with. PO Tudor could not think of anyone who matched these descriptions. PO Tudor denied that he spoke to anyone in the manner alleged.

Patrol Guide 203-09 states that officers must be courteous and respectful in their conduct with the public (BR05).

§ 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: 8

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date